

SENATE No. 1383

The Commonwealth of Massachusetts

PRESENTED BY:

Joanne M. Comerford

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing peer-run respite centers throughout the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>10/3/2025</i>
<i>Adam Gómez</i>	<i>Hampden</i>	<i>10/22/2025</i>

SENATE No. 1383

By Ms. Comerford, a petition (accompanied by bill, Senate, No. 1383) of Joanne M. Comerford for legislation to establish peer-run respite centers throughout the Commonwealth. Mental Health, Substance Use and Recovery.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1238 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing peer-run respite centers throughout the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 19 of the General Laws is hereby amended by inserting after section 26 the
2 following section:-

3 Section 27. (a) As used in this section, the following words shall, unless the context
4 clearly requires otherwise, have the following meanings:

5 “BIPOC”, Black, Indigenous and other People of Color.

6 “Guest”, an adult, 18 years of age or older, who has been accepted by and approved to
7 stay at and receive services from a peer respite.

“LGBTQIA+”, lesbian, gay, bisexual, transgender, queer, intersex, asexual and other gender identities and sexual orientations that individuals may identify as but which may not fall within the preceding classifications.

“Lived or living experience”, knowledge, understanding, expertise and insight into the experiences, choices and options of an individual with behavioral health needs that is based on a person’s perspective, personal identities and history beyond their professional or educational experience and gained from such person’s psychiatric history, traumatic experiences or history of facing or navigating other similar, life-interrupting challenges.

“Peer respite”, a voluntary, short-term, community-based residential peer-run program that: (i) provides peer respite services on a 24 hour basis in a home-like environment to guests experiencing emotional or mental distress either as an immediate precursor to or as a part of a crisis; (ii) addresses social isolation and lack of social connectedness; and (iii) offers peer support and peer respite services by peer supporters and other individuals trained or in the process of completing training to provide such services pursuant to applicable department regulations, rules or other guidance; provided, that the department may promulgate regulations or issue further guidance regarding additional requirements of peer respites including, but not limited to, requirements regarding training, and access for guests with disabilities.

“Peer respite services”, voluntary, short-term, trauma-informed, person-centered support and prevention services provided to peer respite guests that: (i) are the least restrictive of individual freedom; (ii) are culturally competent; (iii) focus on recovery, resiliency and wellness; and (iv) are not clinical services; provided, that the department may promulgate regulations or issue further guidance further defining peer respite services.

“Peer-run program”, a peer respite that: (i) is a non-profit entity itself or within a non-profit entity; (ii) is controlled and operated by a majority of individuals who have lived or living experience; (iii) provides a venue for support and advocacy for individuals who experience similar struggles by peer supporters who have completed or are in the process of completing training required to work in a peer respite pursuant to applicable department regulations, rules or other guidance; (iv) specializes in the provision of peer respite and peer support services; (v) has specialized in the provision of peer respite and peer support services for a minimum of 5 years; (vi) maintains sufficient capacity to provide all staff with adequate supervision; and (vii) does not provide clinical mental health services or in which clinical mental health services make up less than 10 per cent of primary services provided to guests; provided, that the department may promulgate regulations or issue further guidance regarding additional requirements of peer-run programs including, but not limited to, required supervision of staff by individuals with training and experience as a peer supporter and required accommodations for the disability-related needs of a guest.

“Peer supporters”, individuals working in peer respites who: (i) have completed or are in the process of completing training in the provision of peer support services pursuant to applicable department regulations, rules or guidance; (ii) have lived or living experience; and (iii) are trained in and capable of providing peer support and peer respite services.

“Peer support services”, assistance provided by peer supporters in peer respites that promotes engagement, socialization, recovery, self-sufficiency, self-advocacy, development of natural supports, identification of strengths and maintenance of skills learning in other support services; provided, however, that the department may promulgate regulations or issue additional guidance further defining peer support services.

(b) Subject to appropriation, the department shall establish a minimum of 14 regional peer respites throughout the commonwealth; provided, that at least 1 peer respite shall be established in each county; provided further, that at least 2 peer respites shall be established for the purpose of serving LGBTQIA+ individuals and shall be geographically distributed so as to maximize access to peer respite services for LGBTQIA+ individuals in all regions of the commonwealth; provided, however, that such LGBTQIA+ peer respites shall be managed, operated and controlled by individuals identifying as members of the LGBTQIA+ community who also have related lived or living experience; and provided further, that at least 2 peer respites shall be established for the purpose of serving the BIPOC community and shall be geographically distributed so as to maximize access to peer respite services for BIPOC individuals in all regions of the commonwealth; provided, however, that such BIPOC peer respites shall be managed, operated and controlled by individuals identifying as members of the BIPOC community who also have related lived or living experience.

(c) Subject to appropriation, the department shall allocate and provide the funding necessary for and assist with the establishment of each peer respite; provided, however, that said funding for peer respites shall be sufficient to ensure that each peer respite is capable of: (i) providing peer respite and peer support services; (ii) recruiting, training and retaining peer supporters; (iii) supervising and overseeing peer supporters; (iv) conducting informational sessions and training on the functions and qualifications of peer supporters; and (v) compensating peer supporters at a rate sufficient to ensure the retention of highly trained and skilled peer supporters and to maximize the positive impact of their support.

(d) Each peer respite shall: (i) be approved by the department to provide guests with peer respite and peer support services including, but not limited to, short-term, temporary lodging; (ii)

be a peer run program; (iii) employ peer supporters who have received and completed or who are in the process of completing training as required to perform their essential job functions; provided, however, that all peer supporters working in a LGBTQIA+ or a BIPOC peer respite shall receive additional training required to serve members of each respective community; and (iv) be responsible for the provision, operation and control of peer respite facilities, peer respite services and peer support services.

(e) The department shall work with existing peer-run programs providing peer respite and peer support services to identify any additional training requirements for peer supporters, which may differ from training requirements for peer supporters or peer specialists working in other contexts, as well as a fidelity tool to establish and measure ongoing adherence to the basic components of each peer respite based on current leading guides to peer respites; provided, that the department shall work with existing peer-run programs, as well as stakeholders within the LGBTQIA+ and BIPOC communities, to develop any additional training requirements for peer supporters working in LGBTQIA+ peer respites and BIPOC peer respites.

(f) The department shall, in consultation with existing peer-run programs and individuals with experience and expertise in running peer-run programs, promulgate regulations or issue further guidance regarding the establishment and operation of peer respites; provided, however, that such regulations or guidance shall employ definitions and criteria consistent with this section.

(g) Annually, not later than October 1, the department shall prepare and submit a report to the joint committee on mental health, substance use and recovery, the joint committee on public health and the house and senate committees on ways and means that includes, but is not

98 limited to: (i) its progress toward implementing this section; (ii) any challenges or barriers
99 regarding implementation; and (iii) the department's strategy for overcoming any identified
100 challenges or barriers. The department shall publish the report on its public website.